

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: William Begeny	Team: Team # 1	CCRB Case #: 200508646	☒ Force	☐ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 07/26/2005 6:21 PM	Location of Incident: § 87(2)(b)	Precinct: 101	18 Mo. SOL 1/26/2007	EO SOL 1/26/2007	
Date/Time CV Reported Tue, 07/26/2005 6:21 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 07/28/2005 3:21 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. An officer			
2. POM Nicholas Vandyke	18150	927819	101 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Nicholas Vandyke	Force: PO Nicholas Vandyke used physical force against § 87(2)(b) § 87(2)(b)	§ 87(2)(b)
B. An officer	Force: An officer used physical force against § 87(2)(b) § 87(2)(b)	§ 87(2)(b)
C. An officer	Force: An officer tightly handcuffed § 87(2)(b) § 87(2)(b)	§ 87(2)(b)

Synopsis

On July 26, 2005, § 87(2)(b) called 911 and was transferred to IAB to report that officers were hurting his god-brother, § 87(2)(b). On July 28, 2005, the CCRB received a referral from IAB regarding this incident. On July 26, 2005 at approximately 6:21pm at § 87(2)(b) in Queens, § 87(2)(b) was arrested in the walkway of this residence and charged with § 87(2)(b). During the arrest, he was allegedly kicked repeatedly in the head. This case was originally assigned to Investigator Lonnie Klein. Upon his resignation from the agency on October 14, 2005, the case was reassigned to investigator William Begeny.

Several attempts have been made to contact both § 87(2)(b) and § 87(2)(b). On August 5, 2005 Investigator Klein attempted to call the cell phone number for § 87(2)(b) provided in the IAB log (in which he stated he was using someone else's phone). The phone was disconnected. Investigator Klein made four additional attempts from August 8, 2005 until September 8, 2005 with the same result. On September 8, 2005 Investigator Klein searched the Metrosearch database and the Inmate Locator and found no record for either § 87(2)(b) or § 87(2)(b). Investigator Klein sent a letter to § 87(2)(b)'s address provided in the IAB log on September 8, 2005. On September 21, 2005 Investigator Klein made a follow-up call to the NYC Department of Corrections Inmate Locator and found no record for an inmate with the last name of § 87(2)(b) or any other comparable spelling of that last name. On October 6, 2005 a subpoena was sent to Sprint Spectrum to receive the subscriber information for the phone number provided for § 87(2)(b). It was returned with negative results.

Investigator Begeny searched the Metrosearch database, the DMV database, whitepages.com, superpages.com, and the COLE Directory for both § 87(2)(b) and § 87(2)(b) § 87(2)(b) without any positive results on the same date. On October 19, 2005, the investigator submitted a subpoena to Verizon for the subscriber information for the address provided in the arrest report, which was different from that on the IAB log, but that address did not exist. Also on October 19, 2005 a first please call letter was sent to the different address. The Metrosearch database, DMV, whitepages.com, superpages.com, and COLE Directory were searched to find a number for the address located in the arrest report. On October 19, 2005 the phone number provided was called and a recording stated that the number was dialed in error. Also on this date, the undersigned investigator searched OCA and called the Department of Corrections to determine that § 87(2)(b) was not in custody. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

On October 20, 2005 the investigator contacted Homeless Services and found no record of a § 87(2)(b) born in § 87(2)(b).

§ 87(2)(g)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: